

A N N E X N

Non-Interdiction and Maritime Transit Integrity Protocol

Absolute Freedom of Navigation — Zero Tolls — Bright-Line Enforcement

June 2026

Complementary to Annex N.a (Backdoor-Closure Protocol)

Annex W (Maritime Telemetry) • JHTA Charter • MSB Muscat

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Preamble

Purpose

This Annex resolves the core dispute over the authority to halt, board, delay, or deny transit to commercial vessels in the Strait of Hormuz on the basis of non-payment of or dispute over transit fees, navigational service charges, tolls, or similar levies. The framework architecture establishes an absolute non-interdiction protocol for commercial transit, coupled with the Maritime Backdoor-Closure Protocol (Annex N.a) that classifies pretextual interdiction automatically against a bright-line test and activates proportional penalties.

Modularity Clause

This Annex is self-contained and incorporates into the Memorandum of Understanding Pertaining to PEACE by the sentence of adoption in Part D-1 of that instrument. It does not amend or supersede conflicting provisions of any parent framework unless the Parties explicitly so agree. In the event of inconsistency, this Annex governs with respect to the specific subject matter of interdiction and transit integrity.

Relationship to Complementary Instruments

This Annex operates in conjunction with:

1. **Annex N.a (Maritime Backdoor-Closure Protocol):** Automatically classifies pretextual safety inspections against a bright-line test, activates U.S. escort and override authority, and imposes an automatic financial penalty for repeat interdiction.
2. **Annex W (Maritime Telemetry and Dual-Key Transit):** Provides the real-time verification infrastructure across the transit zone.
3. **The Joint Hormuz Transit Authority (JHTA) Charter:** Establishes advisory maritime governance under Article 4 of the Provisional Steps Framework.
4. **The Maritime Stability Board (MSB):** The advisory body in Muscat that receives transit notifications and exercises no regulatory authority over the corridor.

Article 1: Definitions

"Interdiction"

Any act of halting, boarding, inspecting, delaying, diverting, denying transit to, or otherwise interfering with a commercial vessel.

"Commercial vessel"

Any vessel engaged in the transport of goods, energy, or passengers for commercial purposes, excluding military vessels and government-owned non-commercial vessels.

"Transit fee"

Any charge, toll, levy, or navigational service fee imposed as a condition of passage through the Hormuz Transit Zone.

"PGSA"

The Persian Gulf Strait Authority, recognized as the sole executive coastal law-enforcement body within Iranian territorial waters (the 12-nautical-mile limit) under Article 4.2-B of the Provisional Steps Framework. The PGSA retains exclusive authority over vessel permitting and documentation review, coastal patrol and interdiction, customs and immigration enforcement, security screening of suspect vessels, and coordination with the IRGC-Navy on maritime matters — exclusively within Iranian territorial waters. The PGSA exercises no authority over the international transit corridor.

"JHTA"

The Joint Hormuz Transit Authority, established under Article 4 of the Provisional Steps Framework as a multilateral maritime governance body operating in an advisory and coordinating capacity. The JHTA manages commercial traffic coordination, maritime safety protocols, and non-binding dispute recommendations. The JHTA does not levy fees, does not exercise regulatory authority over the corridor, and operates under a 12-month pilot phase.

"MSB"

The Maritime Stability Board, the advisory maritime body seated in Muscat, operated by Oman with international maritime-organization observer status. The MSB receives transit notifications, coordinates traffic, and issues non-binding dispute recommendations. The MSB exercises no governing, regulatory, or revenue power over the corridor.

"Civilian vessel"

Any vessel operated by or under the authority of the PGSA, Iranian Coast Guard, port authority, or any non-military Iranian government entity.

"Hormuz Transit Zone"

The international strait and corridor through which commercial vessels transit, extending beyond the 12-nautical-mile territorial waters of any littoral state.

Article 2: Absolute Prohibition on Interdiction

The framework architecture excludes interdiction of commercial vessels transiting the Strait of Hormuz on the basis of:

1. Non-payment or alleged non-payment of any prohibited toll, fee, or levy;
2. Past financial or administrative disputes regarding regional port or transit authorities;
3. Failure to comply with any unilateral financial registration requirement.

Exceptions

None. The non-interdiction protocol is absolute and non-derogable. No safety inspection, documentation review, or administrative hold operates as a pretext to circumvent this prohibition. The Maritime Backdoor-Closure Protocol (Annex N.a) classifies any pretextual safety inspection automatically against a bright-line test and activates U.S. escort and override authority plus an automatic financial penalty for repeat interdiction.

SOLAS Safeguard

Nothing in this Article impairs obligations under the International Convention for the Safety of Life at Sea (SOLAS), 1974, as amended. Actions taken solely to address genuine maritime emergencies — such as a vessel in distress, actively on fire, sinking, or posing an imminent threat to life at sea — remain permitted, provided such actions are not used as a mechanism to enforce compliance with any economic, administrative, or fee-related requirement. The burden of demonstrating that an intervention was motivated solely by bona fide safety concerns, and not by enforcement of a transit fee or administrative sanction, rests with the interdicting Party or entity.

Enforcement Through the Tiered Step-Back Architecture

A verified violation of this Article constitutes a Tier-2 material disruption under Article 7.3 of the Memorandum of Understanding. A repeat interdiction activates the Backdoor-Closure penalties of Annex

N.a: an automatic financial penalty and forfeiture of service reimbursement. The tiered step-back and earn-back system is the exclusive enforcement mechanism — no automatic, politically irreversible suspension of benefits follows from a maritime violation.

Article 3: Absolute Prohibition on Transit Tolls and Levies

Prohibition of Levies

The framework architecture excludes the assessment, demand, or imposition of any transit fee, toll, navigational service charge, or safety levy of any kind upon commercial vessels utilizing the Hormuz Transit Zone. No Party, nor any regional authority acting on its behalf (including but not limited to the PGSA), exercises tolling authority over the corridor.

Freedom of Navigation

Passage through the Strait of Hormuz is entirely unencumbered by financial obligations, administrative tariffs, or fiscal demands. The United States and coalition forces lift the naval blockade in proportion to verified Iranian compliance, as set out in Article 6 of the Provisional Steps Framework and Article 4.3 of the Memorandum of Understanding.

Decoupling of Services

Any navigational aids, safety broadcasts, or rescue services provided by a littoral state are standard obligations under international maritime law and are not tied to any fee collection mechanism, past or present. Iran invoices the Multilateral Maritime Maintenance Fund for verified services at pre-approved unit rates not exceeding regional market benchmarks, audited independently in Muscat. These are service reimbursements, not tolls, transit fees, management authority, or revenue share.

Service-Reimbursement Framework

Iran receives reimbursement for verified services through the following structure:

Service	Reimbursement Basis
Daily strait monitoring and traffic reporting	Per-vessel rate set in the MMMF charter

Mine-sweeping operations	Per linear kilometer cleared
Environmental and oil-spill response	Per incident, at audited cost
Search-and-rescue coordination	Monthly retainer

Invoicing is quarterly; disputes resolve by binding audit; the Parties review the rate schedule annually. Iran receives a predictable income stream for work performed, and the waterway stays free.

Article 4: Uniform Vessel Protocol

All Iranian vessels operating in the Hormuz Transit Zone, regardless of designation or uniform, are subject to the same rules regarding stand-off distances, AIS broadcasting, and non-interdiction as military vessels under the framework architecture.

This protocol includes, but is not limited to:

- Persian Gulf Strait Authority (PGSA) vessels;
- Iranian Coast Guard vessels;
- Iranian port authority vessels;
- Any civilian vessel acting under the authority of or coordination with the PGSA or Iranian government.

The framework architecture makes no distinction between military and civilian enforcement for purposes of this Annex. The PGSA retains its recognized role as the sole executive coastal law-enforcement body within Iranian territorial waters (the 12-nautical-mile limit) under Article 4.2-B of the Provisional Steps Framework, but the PGSA exercises no tolling, checkpoint, or interdiction authority over the international transit corridor.

PGSA Authority Boundary

The recognition of PGSA authority applies exclusively to Iranian territorial waters (the 12-nautical-mile limit) and does not extend to the transit corridor or the high seas. Within territorial waters, the PGSA retains exclusive authority over vessel permitting, coastal patrol, customs enforcement, and security screening. Beyond the 12-nautical-mile limit, the non-interdiction protocol governs exclusively.

Article 5: United States Non-Intervention Commitment

The framework architecture excludes kinetic or coercive measures by U.S. naval forces to enforce compliance with any transit fee, navigational service charge, or similar levy.

U.S. naval forces intervene in the Hormuz Transit Zone only for:

1. Verified threats to navigation safety (e.g., vessel in distress, collision avoidance);
2. Acts of piracy as defined under international law (UNCLOS Article 101);
3. Responses to a specific, imminent, and verified armed attack.

U.S. naval forces do not:

- Intervene in disputes between vessel operators and littoral states over administrative or financial matters;
- Use the threat of intervention to compel payment of fees;
- Act as debt collectors for any regional authority.

The U.S. naval stand-off — no patrols within five nautical miles of the transit corridor — triggers only on IAEA confirmation that HEU consolidation has begun, not on signature alone. The United States maintains its posture until Iran performs the first verified step, and Iran earns the stand-off by delivering it.

Article 6: Dispute Resolution

Maritime Stability Board Arbitration

Any dispute arising from the interpretation or enforcement of this Annex first resolves through the Maritime Stability Board in Muscat. The MSB convenes within 24 hours of a dispute notification and issues a non-binding recommendation. The MSB exercises no governing or regulatory authority; its role is advisory.

Escalation to the Political & Compliance Council

If the MSB recommendation does not resolve the dispute, either Party escalates the matter to the Political & Compliance Council (PCC) in Geneva. The PCC issues a compliance determination within 48 hours.

Binding Arbitration

If PCC mediation does not resolve the dispute, binding arbitration under the Permanent Court of Arbitration (PCA) in The Hague follows:

- **Arbitration panel:** Three members (one appointed by each Party, one neutral appointed by the PCA Secretary-General).
- **Timeline:** Ruling issues within 30 days of the filing of the dispute.
- **Standstill:** No unilateral coercive action, including military or economic measures, is taken by either Party pending the arbitration ruling.

Pretextual Interdiction: Automatic Backdoor-Closure

Any Iranian claim that a vessel sits within territorial waters for the purpose of imposing a toll or inspection goes automatically to Maritime Stability Board arbitration. A finding of pretext activates the Backdoor-Closure Protocol (Annex N.a): automatic classification against a bright-line test, U.S. escort and override authority, an automatic financial penalty drawn from Iran's escrow, and a 90-day forfeiture of service reimbursement for a repeat interdiction.

Article 7: Incorporation by Reference

This Annex incorporates into the Memorandum of Understanding Pertaining to PEACE and the Provisional Steps Framework by the following sentence of adoption:

“The Parties adopt Annex N (Non-Interdiction and Maritime Transit Integrity Protocol) and Annex N.a (Maritime Backdoor-Closure Protocol) as operative provisions of this Agreement. In the event of any inconsistency, Annex N governs with respect to the interdiction of commercial vessels and the separation of fee collection from transit monitoring, and Annex N.a governs with respect to the automatic classification and penalty architecture for pretextual interdiction.”

No further amendment of the parent framework is required. This Annex enters into force upon the later of: (1) signature by both Parties; or (2) the effective date of the parent framework into which it is incorporated.

Article 8: Provisional Application

The Parties apply this Annex provisionally for a period of 90 days, pending formal ratification or incorporation into a parent framework. Provisional application is effected by an exchange of diplomatic notes. During provisional application, all provisions of this Annex are operative and binding. Either Party terminates provisional application with 14 days' written notice.

Article 9: Severability

If any provision of this Annex is found by a court of competent jurisdiction or arbitral panel to be unenforceable, the remaining provisions remain in full force and effect. The Parties promptly negotiate a replacement for any provision found unenforceable, preserving the original intent to the maximum extent possible.

Article 10: Duration and Withdrawal

This Annex remains in force indefinitely, unless:

1. Both Parties agree in writing to terminate it; or
2. The parent framework into which it is incorporated terminates, and the Parties do not reaffirm this Annex within 90 days of such termination.

Withdrawal from this Annex without withdrawal from the parent framework is not permitted. This Annex is integral to the transit integrity architecture and does not sever unilaterally.

Signature Page

This Annex enters into force upon signature by both Parties or upon incorporation by reference into a parent framework, whichever occurs later.

For the Islamic Republic of Iran:

For the United States of America:

Name: _____

Name: _____

Title: _____

Title: _____

Date: _____

Date: _____

Witnessed by (if applicable):

- Sultanate of Oman
- Swiss Confederation
- Other (specify): _____